

Nepal Administrative Staff College Act, 1982

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Nepal Administrative Training Institute Act, 2039

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
2. Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal 2075.11.19

Act No. 4 of the year 2039

An Act Made to Provide for the Nepal Administrative Training Institute

Preamble: Whereas, it is desirable to make legal provisions for the establishment and operation of the Nepal Administrative Training Institute to provide planned training to the human resources of government bodies and corporations with the objective of enhancing administrative and management efficiency of such bodies and corporations;

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Nepal Administrative Training Institute Act, 2039".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Institute" means the Nepal Administrative Training Institute established pursuant to Section 3.

(b) "Council" means the Training Council (Governing Council) constituted pursuant to Section 7.

(c) "Committee" means the Executive Committee constituted pursuant to Section 9.

(d) "Executive Director" means the Executive Director appointed pursuant to Sub-section (2) of Section 11.

(e) "Corporation" means an organized institution owned or controlled by the Government of Nepal, and also includes another institution owned or controlled by such institution.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules framed under this Act. Chapter - 2

Establishment, Objectives and Policy of the Nepal Administrative Training Institute

3. Establishment of the Nepal Administrative Training Institute: (1) The Nepal Administrative Training Institute

is established in Nepal to provide high-level training on subjects related to administration and management.

(2) The Institute shall be called in English "Nepal Administrative Staff College".

(3) The Nepal Administrative Training Institute established before the commencement of this Act shall be deemed to have been established under this Act. 4. Institute to be a Corporate Body: (1) The Institute shall be an autonomous and incorporated body with perpetual succession.

(2) The Institute shall have its own separate seal.

(3) The Institute may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property.

(4) The Institute may, like a person, sue in its own name and be sued in its own name.

(5) Notwithstanding anything contained in the prevailing law, the operation and management of the Institute's own work shall be in accordance with this Act and the working procedure regulated by the rules or regulations made under this Act. 5.

Objectives of the Institute: The objectives of the Institute shall be as follows:- (a) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. To make provision for necessary training for the employees of the Government of Nepal, Provincial Government, Local Level and Corporations. (b) To make arrangements for strengthening the administrative sector of the Government of Nepal and the management sector of Corporations to support the country's development programs. (c) To conduct programs related to problem-oriented research, consultancy services and information services to make training more useful and to prepare training materials. 6. Policy Relating to Training: The policy relating to training conducted by the Institute shall be as follows:- (a) To integrate training programs as an integral part of personnel administration. (b) To link training programs with the development programs of the Government of Nepal and Corporations. (c) To link training with career development by enhancing developmental knowledge and skills among the employees of the Government of Nepal and Corporations. Chapter-3 Formation, Functions, Duties and Powers of the Training Council and Executive Committee 7. Formation of the Training Council: (1) There shall be constituted a Training Council as the supreme body of the Institute, having members as follows:- (a) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Minister for Federal Affairs and General Administration - Chairperson (b) Honorable Vice-Chairperson, National Planning Commission - Member (c) Chairperson, Public Service Commission - Member (d) Vice-Chancellor, Tribhuvan University - Member (e) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Chief Secretary, Government of Nepal, Office of the Prime Minister and Council of Ministers - Member (f) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Secretary, Ministry of Federal Affairs and General Administration - Member (g) Secretary, Ministry of Finance - Member (h) Executive Director of the Institute - Member-Secretary (2) The meeting of the Council shall be held at least twice a year. (3) The procedure for the meeting of the Council shall be as prescribed. 8. Functions, Duties and Powers of the Council: In addition to the functions mentioned elsewhere in this Act, the functions, duties and powers of the Council shall be as follows:- (a) To determine policy relating to training and research programs to be conducted by the Institute. (b) To make rules and approve regulations of the Institute. (c) To approve the long-term plan of the Institute. (d) To review and evaluate the progress of the annual program of the Institute and approve the budget. (e) To give necessary directives to the Committee. 9.

Formation of the Executive Committee: (1) There shall be constituted an Executive Committee having

members as follows to conduct research programs in a systematic manner in accordance with the objectives and policy of the Institute:- (a) Executive Director of the Institute - Chairperson (b) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Secretary, Ministry of Federal Affairs and General Administration - Member (c) Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member (d) Secretary, Ministry of Finance - Member (e) Secretary, Public Service Commission - Member (f) Secretary, National Planning Commission - Member (g) Three persons nominated by the Government of Nepal - Member (h) Deputy Executive Director of the Institute designated by the Council - Member-Secretary (2) The Committee may, if it deems necessary, invite experts to participate as observers in the meeting of the Committee. (3) The term of office of the nominated members of the Committee shall be two years. The remuneration and other facilities to be received by such nominated members shall be as prescribed. (4) The meeting of the Committee shall be held as required. (5) The quorum and other procedures for the meeting of the Committee shall be as prescribed. 10.

Functions, Duties and Powers of the Committee: The functions, duties and powers of the Committee shall be as follows:- (a) To conduct appropriate training programs for the employees of the Government of Nepal and Corporations. (b) To organize seminars, workshops and conferences from time to time on administrative problems and their solutions. (c) To conduct programs related to research, consultancy services and information services. (d) To contact training institutions of other countries and international organizations and assist in its training work. (e) To advise the Government of Nepal through the Council on formulating national-level training policy. (f) To formulate policy relating to the training and research programs of the Institute. (g) To advise the Government of Nepal through the Council on bringing coordination among training programs related to various sectors of the Government of Nepal and Corporations. (h) To formulate the long-term plan of the Institute. (i) To prepare the annual program and budget of the Institute. (j) To create posts for necessary employees for the Institute and appoint them. (k) To evaluate, or cause to be evaluated, the training programs. (l) To act as a contact medium between the Government of Nepal and international organizations in the field of training. (m) To arrange for the periodic exchange of services of experienced persons in various fields to make training program-oriented and practical. (n) To obtain the approval of the Council when selling property of the Institute exceeding the prescribed amount. (o) To carry out other necessary work relating to training subject to this Act, rules or regulations. Chapter-4 Provisions Relating to Employees of the Institute and their Service Conditions 11. Provisions Relating to Employees of the Institute: (1) The Institute shall have the following types of employees:- (a) Administrative, (b) Teaching and Research. (2) There shall be an Executive Director as the head of the Institute. He/She shall be appointed by the Government of Nepal. His/Her term of office shall be five years and the Government of Nepal may, if it desires, extend his/her term of office for up to another five years. (3) Other employees shall be in the Institute as required. (4) The remuneration, terms of service and facilities of the employees of the Institute shall be as prescribed. 12.

Functions, Duties and Powers of the Executive Director and Other Employees: (1) The functions, duties and powers of the Executive Director shall be as follows:- (a) To implement, or cause to be implemented, the decisions and directives of the Council and the Committee. (b) To submit the long-term plan, annual program and budget of the Institute to the Council through the Committee for approval. (c) To implement the long-term plan and annual program of the Institute approved by the Council. (d) To submit, or cause to be submitted, progress reports of the Institute to the Committee from time to time. (e) To conduct, or cause to be conducted, internal evaluation of the training programs of the Institute. (f) To hold necessary discussions with the concerned parties regarding programs contracted with national and international institutions and other

assistance and submit, or cause to be submitted, them to the Committee for approval. (g) To perform, or cause to be performed, other work relating to the Institute. (2) The functions, duties and powers of employees other than the Executive Director shall be as prescribed. Chapter-5 Fund, Accounts and Audit 13. Fund of the Institute: (1) The Institute shall have its own separate Fund. (2) The following amounts shall be in the Fund of the Institute:- (a) Grant amounts received from the Government of Nepal. (b) Amounts received from any foreign government and international organizations. (c) Amounts received for consultancy services and research work. (d) Amounts received from any other sources. (3) All amounts of the Fund shall be deposited in any commercial bank of Nepal. (4) The amounts required for expenses for conducting work in accordance with the objectives of the Institute shall be borne from the Fund referred to in Sub-section (1). 14. Method of Keeping Accounts: The accounts of income and expenditure of the Institute shall be kept in the format and manner approved by the Council. 15. Audit: (1) The audit of the accounts of the Institute shall be conducted by an auditor appointed by the Council. (2) Other matters relating to the audit of the Institute shall be as prescribed. Chapter-6 Training System, Training Materials and Curriculum 16. Identification of Training Needs: (1) The Institute may, from time to time, conduct surveys to identify the training needs required for the administration sector of the Government of Nepal and the management sector of Corporations. (2) The training curriculum and program shall be determined on the basis of the survey report conducted pursuant to Sub-section (1). 17.

Evaluation of Other Training Programs: (1) The Institute may, from time to time, evaluate other training programs being conducted in the administration sector of the Government of Nepal and the management sector of Corporations. (2) On the basis of the evaluation conducted pursuant to Sub-section (1), the Institute may amend or change its training programs as necessary, and in the case of other trainings, it may suggest the Government of Nepal through the Council to make such amendments or changes. 18. Training System: Useful and effective modern training techniques shall be used in the training program, considering the group of trainees and the nature of the subject. 19. Training Materials: For the training programs of the Institute, training materials that are relevant to the economic, social, political and cultural context of Nepal and useful from a theoretical perspective shall be arranged. 20. Curriculum: To make the training program more productive and effective, emphasis shall be placed on both theoretical and practical aspects in the curriculum. Chapter-7 Miscellaneous 21. Report to be Published: The Institute shall publicly publish a report on the activities of the Institute every year. 22. Delegation of Powers: The Committee may delegate all or some of the powers it has received under this Act to the Executive Director or any other employee of the Institute. The Executive Director may delegate all or some of the powers he/she has received under this Act to the Deputy Executive Director or other employees of the Institute. 23. Contact with the Government of Nepal: When contacting the Government of Nepal, the Institute shall contact through the Amended by Some Nepal Acts Amendment Act, 2075 to Make Consistent with the Constitution of Nepal. Ministry of Federal Affairs and General Administration. 24. Power to Make Rules and Regulations: (1) The Council may make necessary rules for the implementation of the objectives of this Act. (2) For other necessary work and proceedings of the Institute, the Committee may make necessary regulations subject to the rules made under Sub-section (1), and such regulations shall come into effect after approval from the Council.